

Reactive Assemblies and Presidential Power

For decades, Latin American politics seemed to orbit around the figure of the president. Scholars, journalists, and even citizens treated executives as the true centers of power, while legislatures appeared marginal—slow, factionalized, and ineffective. The recurrent interruptions of democracy only reinforced this perception: coups dissolved congresses, strongmen ruled by decree, and even elected presidents justified bypassing legislators in the name of reform or stability.

if presidents remain powerful, what do legislatures actually do? How do institutional rules—reelection laws, electoral systems, and constitutional powers—shape legislative behavior? And how, in turn, do these behaviors structure presidential strategies?

Understanding how reactive legislatures function requires rethinking much of what we assume about democratic politics. In the U.S. model, legislators are individual entrepreneurs seeking reelection; they cultivate constituencies and professional careers. In much of Latin America, reelection is limited or impossible, and political careers depend on parties, governors, or presidents rather than voters. These differences alter the incentives that organize legislative life, producing an entirely different kind of institution.



From U.S. Models to Latin American Realities

Traditional theories of legislatures emerged from the experience of the United States. They assume legislators with static ambition—politicians who want to keep their seats—and who invest in constituent service, committees, and expertise to ensure reelection. This assumption underlies much of what we know about congressional organization: the rise of stable committees, seniority systems, and the professionalization of staff.

But in Latin America, these conditions seldom hold. In many countries, reelection was historically banned or extremely difficult, and even where it is allowed, turnover is high. Legislators often see their term as a springboard to other offices, not as a long-term career. Morgenstern calls this progressive ambition—a forward-looking orientation that values political advancement over legislative continuity.

The consequences are profound. Without incentives for reelection, legislators have little reason to invest in institutional development. They focus instead on cultivating relationships with party leaders or presidents who can appoint them to future positions. This weakens committees, reduces oversight, and makes legislatures less cohesive. Yet paradoxically, it also makes them central to the functioning of presidential regimes: because presidents need legislative votes to govern, these short-term actors become key brokers in the exchange of support for resources.



The Spectrum of Legislative Types

Originative assemblies

typical of parliamentary systems, make and break executives and thus drive the government's agenda.

Proactive assemblies

like the U.S. Congress, initiate legislation and dominate policymaking.

Reactive assemblies

common in Latin America, shape policy by amending, delaying, or rejecting executive proposals.

Within the reactive category, he identifies four ideal types that describe the range of Latin American experience:



Subservient legislatures

dominated by the executive, routinely approve presidential initiatives.



Venal or parochial legislatures

whose members trade support for patronage, pork, or personal gain.



Workable legislatures

capable of negotiation and coalition-building with the executive.



Recalcitrant legislatures

which oppose and obstruct presidential policies.

These types are not rigid categories but positions along a continuum. Legislatures can shift between them as political coalitions change or as presidents gain or lose influence. What matters is not whether Congress originates policy, but how it reacts—with subordination, bargaining, or resistance.

The Institutional Foundations of Legislative Behavior

a. Reelection and Ambition

Reelection incentives determine whether legislators view Congress as a career or a **temporary** stage.



Chile

has the highest reelection rates in the region, fostering professionalism and stability. Legislators cultivate district ties, rotate committee chairs, and develop policy expertise.



Argentina

sees even lower reelection rates, partly because provincial governors and party bosses control nominations. Legislators often prioritize loyalty to these patrons over institutional development.



Brazil

allows reelection, but success is uncertain; about 70% of incumbents run, and fewer than two-thirds win. High turnover keeps legislators dependent on party leaders and regional elites.



Mexico

Historically prohibited immediate reelection altogether. Legislators had no constituency base and no future in Congress, making them reliant on party leadership for post-legislative careers.

These differences explain why some legislatures, like Chile's, are more institutionalized and professionalized, while others, like Mexico's or Argentina's, remain transient and pliable. Where reelection is possible, legislators invest in the institution; where it is not, they invest in personal or partisan networks.

The Institutional Foundations of Legislative Behavior



b. Electoral Systems and Party Unity

The design of electoral systems affects who controls nominations and how disciplined parties become.

- Closed-list proportional representation, as in Argentina, gives party leaders control over nominations and enforces discipline.
- Open-list systems, as in Brazil, create fierce competition among candidates of the same party, undermining cohesion and encouraging clientelism.
- Mixed or binomial systems, as in Chile, combine proportional representation with local competition, balancing central control and individual visibility.
- Mexico's mixed system under the PRI combined single-member districts with national lists, ensuring loyalty through centralized nomination control.

The more centralized the nomination process, the stronger the discipline—but also the greater the potential for local fragmentation where federalism empowers subnational elites.

The Institutional Foundations of Legislative Behavior

c. Ideology and Volatility

Stable ideological parties foster cooperation; volatile ones encourage opportunism.

Chile's relatively coherent coalitions, divided between center-left and right, sustain predictable bargaining. Brazil's fluid party system, by contrast, forces presidents to cobble together temporary coalitions with ever-shifting partners. High electoral volatility—Brazil's exceeds twice that of Chile—reflects weak party labels and a personalized political culture.

d. Federalism and Local Power

Federal systems multiply veto players.

In Argentina and Brazil, governors dominate local party machines and use national legislators to channel resources to their provinces. Congress becomes an arena for distributive bargaining rather than national policymaking. Unitary systems like Chile's avoid this fragmentation, producing more cohesive legislative blocs.



Legislative Power and the "Law of Anticipated Reactions"



Even within these constraints, Latin American legislatures wield influence the law of anticipated reactions: when one actor knows another can block or punish its actions, it adjusts behavior accordingly. Presidents, aware that legislatures can veto or delay their proposals, often negotiate preemptively.

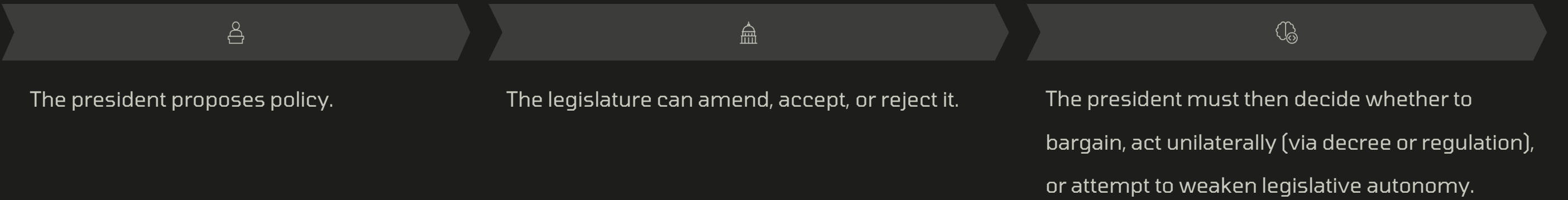
This means that legislative power operates *ex ante* rather than *ex post*. Congress does not have to reject bills to shape them; its mere existence as a potential obstacle alters presidential strategy. Even authoritarian-minded presidents prefer to secure legislative consent because it legitimizes policy and reduces political costs.

Examples abound. In Brazil, despite wide decree powers, presidents rarely ignore Congress. Studies show that most major initiatives pass only after extensive amendment and negotiation. In Mexico, once the PRI lost its majority in 1997, Congress began to assert itself over budgets, auditing, and peace negotiations, forcing presidents to bargain. In Chile, presidents anticipate legislative preferences so closely that open conflict is rare; negotiation occurs early and quietly.

Thus, even reactive assemblies influence outcomes—not through confrontation, but through the constraints they impose on presidential calculation.

The Bilateral Veto Game

Cox and Morgenstern describe policymaking in Latin America as a bilateral veto game:



This asymmetrical sequence—executive initiative followed by legislative reaction—defines the rhythm of Latin American governance.

Presidents differ not by whether they dominate the process, but how they manage their dominance.

The Central Oscillation: Presidential Strategies and Legislative Types

Legislative Type	Presidential Strategy	Core Behavior
Recalcitrant	Imperial President	Uses decrees, emergency powers, and confrontation to bypass opposition.
Workable	Coalitional President	Builds alliances, negotiates policy, and shares credit for legislation.
Venal/Parochial	Nationally Oriented President	Trades resources, cabinet posts, and pork for votes; prioritizes stability.
Subservient	Dominant President	Rules through party control; legislature ratifies executive decisions.

This pairing produces the central oscillation of Latin American presidentialism: as legislative support grows, presidents rely more on negotiation and integrative powers; as it declines, they revert to unilateralism. The balance between decree and coalition varies over time within the same country.

Unilateral vs. Integrative Powers

Presidents possess two sets of tools: unilateral powers, which allow them to act without Congress, and integrative powers, which enable collaboration.

Unilateral powers

include constitutional decrees, regulatory authority, and vetoes. They expand when presidents are weak politically.

Integrative powers

include urgency provisions, agenda-setting rights, and cabinet appointments that link executive and legislative elites. These are used more when presidents enjoy legislative majorities.

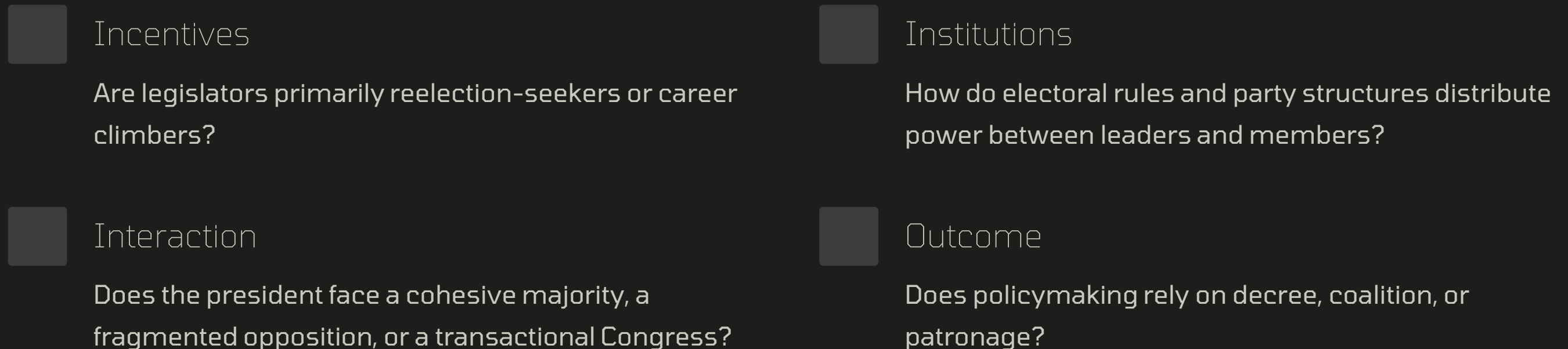
Thus, the use of decree authority is inversely related to political strength: the weaker the president's coalition, the greater the temptation to bypass Congress. Legislatures rarely lead policy, but they define the boundaries within which presidents can act. They are the reactive counterpart that gives Latin American presidentialism its distinctive form.

Comparative Lessons from the Four Cases

- Chile exemplifies a workable legislature paired with a coalitional presidency. Stable parties, reelection incentives, and moderate electoral rules foster negotiation and professionalism.
- Brazil oscillates between venal and recalcitrant: open-list elections and weak party cohesion force presidents to build sprawling coalitions through pork and patronage.
- Argentina alternates between venal and subservient: provincial bosses dominate the legislative delegation, allowing presidents leverage but undermining national coherence.
- Mexico before democratization, was the archetypal subservient legislature under a dominant presidency; after 1997, it evolved toward a workable type as divided government introduced negotiation.

Using the Framework: How to Analyze Institutional Patterns

The Morgenstern–Cox framework is not a static classification but a diagnostic tool. It allows analysts to evaluate any Latin American democracy by asking four sets of questions:



By answering these questions, we can locate a regime within the typology of legislative–presidential relations. For instance, Colombia's fragmented multiparty system produces dynamics similar to Brazil's; Uruguay's disciplined parties and strong legislature resemble Chile's; Peru's highly personalized politics often drift toward Argentina's venal pattern.

Broader Implications

There is more variance than the binary of "strong presidents, weak legislatures". Legislative weakness is not inevitable; it is contingent on incentives and organization.

Understanding these dynamics has practical importance. It helps explain why policy continuity is higher in Chile than in Brazil, why executive overreach is recurrent in Argentina and Peru, and why Mexican democracy stabilized only after Congress gained autonomy. It also suggests that strengthening legislatures does not require weakening presidents, but rather reinforcing the incentives that make assemblies professional, cohesive, and accountable.

Latin America's legislatures are not passive remnants of authoritarian rule; they are reactive arenas where the balance of democratic power is continually renegotiated. Presidents may initiate policy, but they do so under the shadow of legislative reaction—anticipating, bargaining, and adapting to a set of institutions that, though often overlooked, anchor the region's democratic politics.

